

What Applies to Access to Log Files?

Date: 06-06-2024

Decision

Public Authorities

No Criticism

Complaint

Logging

Right to Access

On June 22, 2023, the Court of Justice of the European Union addressed the issue of access to logs. The ruling of the Court of Justice means that there is new practice regarding access to logs.

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The Data Protection Agency hereby returns to the case, where the Data Protection Agency on October 3, 2023 – from the Parliamentary Ombudsman – received a complaint from (complainant) regarding the refusal of the Ministry of the Interior and Health to grant him access to the security log of the CPR.

1. Decision

The Data Protection Agency finds – after the case has been discussed at a meeting of the Data Council – that the Ministry of the Interior and Health could not refuse the complainant's request for access based on the stated justification according to Article 15 of the General Data Protection Regulation. Below follows a detailed review of the case and a justification for the Data Protection Agency's decision.

2. Case Presentation

The Data Protection Agency received on October 3, 2023 – from the Parliamentary Ombudsman – a complaint from the complainant regarding the Ministry of the Interior and Health – referring to the Data Protection Agency's previous practice, according to which there was no right to access security logs – had refused to grant him access to the security log of the CPR.

On November 20, 2023, the Data Protection Agency decided to forward the complaint to the Ministry of the Interior and Health, so that the ministry – in light of the Court of Justice's ruling in case C-579/21 of June 22, 2023 – had the opportunity to reconsider its refusal.

On January 4, 2024, the Ministry of the Interior and Health reassessed its decision and upheld the refusal. The Ministry of the Interior and Health stated in this context, among other things, that: "You have requested access to historical data about personal subscriptions in the CPR concerning yourself. As the Ministry of the Interior and Health has previously informed you, the data content in the CPR, according to Appendix 1, No. 14, to the CPR Act, only includes information about current subscriptions. Historical subscriptions are not stored in the CPR. When a request for access to the CPR register is made, only access to the current information about subscriptions in the CPR is granted. However, information about historical subscriptions concerning a specific person can be derived for a limited period via the CPR's security log. Therefore, your request for access is treated as a request for access to the CPR's security log."

The Purpose of the CPR's Security Log

The CPR's security log is a systematic facility derived from the actual processing of personal data in the CPR. Logging of events in the CPR occurs to meet requirements for security logging, e.g., Article 32 of the General Data Protection Regulation regarding processing security, and guidelines on logging, e.g., logging guidelines from the Center for Cybersecurity. The entries in the log are thus made for technical system reasons and serve internal administrative purposes.

Information Processed in the CPR's Security Log

The CPR's security log includes, among other things, information about the date and time of queries, searches, and subscription entries (subscription creations and deletions) in the CPR, which or which personal identification numbers have been the subject of the search, query, or subscription entry, as well as information about any used personal code (username) and program (type of information). The personal code is assigned to a specific authority or company and is often linked to certain personal data such as the user's possible name and email address, which can be used to identify the physical

persons who have conducted the searches, etc. The CPR's security log does not contain information about the purpose of a specific conducted search, subscription creation, or deletion, etc.

Relevant Legal Basis

Article 15 of the General Data Protection Regulation entails that the data subject has the right to see the personal data that is processed about them. According to Section 22, Subsection 2 of the Data Protection Act, an exception from the provision in Article 15 of the General Data Protection Regulation can be made if the data subject's interest in gaining knowledge of the information is found to be outweighed by compelling considerations of public interest, including in particular for:

- 1) national security,
- 2) defense,
- 3) public safety,
- 4) prevention, investigation, detection, or prosecution of criminal offenses or enforcement of criminal sanctions, including protection against and prevention of threats to public safety,
- 5) other important objectives related to the protection of the European Union's or a member state's general societal interests, in particular the European Union's or a member state's essential economic or financial interests, including currency, budget, and tax matters, public health, and social security,
- 6) protection of the independence of the judiciary and legal proceedings,
- 7) prevention, investigation, detection, and prosecution in connection with breaches of ethical rules for regulated professions,
- 8) control, supervision, or regulatory functions, including tasks of a temporary nature associated with the exercise of public authority in the cases referred to in numbers 1-5 and 7.
- 9) protection of the rights and freedoms of the data subject or others, and
- 10) enforcement of civil claims.

Assessment of your right to access in relation to, among other things, societal interests

It is the Ministry of the Interior and Health's view that the consideration for public authority exercise, general societal interests, and economic interests – including considerations for state security, the possibility of prevention, investigation, disclosure, or prosecution of criminal acts, and control, supervisory, or regulatory functions – outweighs your right to access information that can be derived from the CPR's security log.

The Ministry of the Interior and Health emphasizes that accommodating your request for access to the CPR's security log would open up general access to information that can be derived from the CPR's security log, which would inevitably lead to a resource drain on the ministry that would far exceed the ministry's capabilities and available resources for this purpose.

In this context, the Ministry of the Interior and Health emphasizes that the CPR's security log shows activities by authorities where confidentiality regarding the authority's queries and searches in the CPR can be crucial for the exercise of authority. This is particularly true in relation to the National Police and the Tax Administration, but may also apply to other authorities.

Furthermore, the Ministry of the Interior and Health emphasizes that the CPR, as a central basic data register, is subject to a very significant number of queries, searches, and subscription statements annually, and that processing requests for access to the security log in each individual case would require a manual review and case processing – and in certain cases also an assessment of the need to protect confidentiality and observe the rights and freedoms of employees. It is noted that 30,000 to 40,000 individuals each month request access to information in the CPR about themselves through digital self-service, cf. Article 15, paragraph 1 of the Data Protection Regulation.

The Ministry of the Interior and Health also emphasizes that the CPR's security log, in isolation, cannot be used to verify whether a given processing of information by the data controller authority or company has been lawful, as the CPR's security log does not contain information about the authority's or company's purpose for processing the individual's information.

Finally, the Ministry of the Interior and Health emphasizes that your ability to verify the lawfulness of the processing of your information must be considered to be safeguarded through the data controllers' obligations to inform you under Articles 13 and 14 of the Data Protection Regulation, which must include information about the purpose of the processing. It is noted in this context that establishing

personal subscriptions in the CPR requires that the data controller authority or company can clearly identify the individual persons who are subscribed, vis-à-vis the CPR, for example, by using name and address, and that the authority's or company's registration and processing of this information occurs on a lawful basis under Article 6 of the Data Protection Regulation.

The Data Protection Agency inquired on April 29, 2024, by phone, with the Ministry of the Interior and Health regarding whether the ministry had anything further to add to the case concerning the ministry's refusal and the reasoning for it dated January 4, 2024. The Ministry of the Interior and Health has not provided any further comments.

3. Reasoning for the Data Protection Agency's decision

3.1. General information about the right to access

It follows from Article 15, paragraph 1 of the Data Protection Regulation that the data subject has the right to obtain the data controller's confirmation as to whether personal data concerning them is being processed, and, if so, access to the personal data and the following information:

- the purposes of the processing
- the categories of personal data concerned
- the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations
- where possible, the intended period for which the personal data will be stored, or, if that is not possible, the criteria used to determine that period
- the right to request the data controller to rectify or erase personal data or restrict the processing of personal data concerning the data subject or to object to such processing
- the right to lodge a complaint with a supervisory authority
- any available information about the source of the personal data if they were not collected from the data subject
- the existence of automated decision-making, including profiling, as referred to in Article 22, paragraphs 1 and 4, and at least meaningful information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

According to Article 15, paragraph 3 of the Data Protection Regulation, the data controller shall provide a copy of the personal data undergoing processing. The right to receive a copy as referred to in paragraph 3 must not adversely affect the rights and freedoms of others, cf. Article 15, paragraph 4 of the Regulation.

3.2. Section 22 of the Data Protection Act

Section 22 of the Data Protection Act contains a number of exceptions to Article 15. It follows from Section 22, paragraph 2 of the Data Protection Act that exceptions...

the provisions of the General Data Protection Regulation's Article 13, paragraphs 1-3, Article 14, paragraphs 1-4, Article 15, and Article 34 may be made if the data subject's interest in obtaining knowledge of the information is deemed to yield to compelling considerations of public interest, including in particular:

- 1) state security,
- 2) defense,
- 3) public safety,
- 4) prevention, investigation, detection, or prosecution of criminal offenses or enforcement of criminal sanctions, including protection against and prevention of threats to public safety,
- 5) other important objectives related to the protection of the European Union or a Member State's general societal interests, in particular the European Union's or a Member State's significant economic or financial interests, including currency, budget, and tax matters, public health, and social security,
- 6) protection of the independence of the judiciary and legal proceedings,
- 7) prevention, investigation, detection, and prosecution in connection with breaches of ethical rules for regulated professions,
- 8) control, supervision, or regulatory functions, including tasks of a temporary nature associated with the exercise of public authority in the cases referred to in items 1-5 and 7,
- 9) protection of the rights and freedoms of the data subject or others, and

10) enforcement of civil law claims.

From the specific remarks on Section 22, paragraph 2 of the Data Protection Act, it is stated that: "The provision establishes – just like the provision in paragraph 1 – that restrictions on the data controller's or their representative's duty to provide information can only occur based on a concrete weighing of the opposing interests mentioned in the provision. Based on such a weighing, an exception may be made if there is an imminent danger that the public interest will suffer significant harm. The provision further establishes the extent to which the data controller may refrain from granting the data subject the right to access. The restriction on the data subject's access to the information mentioned in Article 15 of the Regulation can only occur based on a concrete weighing of the opposing interests. An exception from the right of access may also occur under Article 15, paragraph 1, letter h, which concerns access in connection with automated decisions, including profiling, as referred to in Article 22, paragraphs 1 and 4 of the Regulation.

In the weighing regarding a special exception from the right of access under Article 15 of the Regulation, as mentioned, on one side is the data subject's interest in obtaining knowledge of the information. This refers not only to the data subject's interest in knowledge of the information in connection with considerations of bringing a case to the courts, higher administrative authority, relevant supervisory authority, or the Parliamentary Ombudsman, but also to the data subject's interest in being able to verify the accuracy of the information for the data controller's use of the information.

By using the term "compelling" in the provision, it is indicated that exceptions to the duty to provide information and the right of access can only be made where there is an imminent danger that public interests will suffer significant harm. The term "compelling considerations" aims for congruence with the corresponding weighing of opposing considerations that must be made under Section 8 of the Public Access to Information Act regarding self-access and Section 15, Section 15a, and Section 15b of the Administrative Act regarding exceptions to information from access to documents.

In accordance with Article 23, paragraph 2 of the Regulation, the data controller must, to the greatest extent possible and relevant, when exceptions are specifically made to the duty to provide information and the right of access under both paragraphs 1 and 2, attempt to take into account the considerations arising from Article 23, paragraph 2, within the area of life that the data controller intends to limit. This means, for example, that the data controller is obliged to consider what risks are associated with the exception from the duty to provide information or the right of access for the data subject, cf. Article 23, paragraph 2, letter g of the General Data Protection Regulation. Thus, for example, whether there will be a risk that the collected information is incorrect. Furthermore, the data controller may, for example, in connection with an exception from the right of access for the sake of others' freedoms, inform the data subject of this limitation, cf. Article 23, paragraph 2, letter h of the General Data Protection Regulation.

Finally, it is directly incumbent upon the data controller under the provisions of paragraphs 1 and 2 to take into account the scope of the imposed restrictions, cf. Article 23, paragraph 2, letter c of the General Data Protection Regulation, as the data controller must make a concrete assessment of whether there are compelling considerations for each individual piece of information.

3.3. Judgment of the Court of Justice of the European Union in Case C-579/21

On June 22, 2023, the Court of Justice of the European Union delivered its judgment in Case C-579/21. The Court was asked to determine whether log files – including the identity of the individuals who accessed the information in the log – are covered by the right of access in Article 15 of the General Data Protection Regulation. The Court stated the following:

"37. With the first and second questions, which should be addressed together, the referring court seeks to ascertain whether Article 15, paragraph 1 of the General Data Protection Regulation should be interpreted as meaning that information concerning searches of a person's personal data, concerning the dates of and..."
the purpose of these searches and regarding the identity of the physical persons who have conducted

the relevant searches constitutes information that the data subject is entitled to receive from the data controller under this provision. It should be noted at the outset that it follows from established practice that, in interpreting an EU legal provision, not only the wording of the provision must be taken into account, but also the context in which it is situated and the objectives pursued by the framework of which it forms a part (judgment of 12.1.2023, Österreichische Post (Information on recipients of personal data), C-154/21, EU:C:2023:3, paragraph 29).

Firstly, regarding the wording of Article 15(1) of the General Data Protection Regulation, it should be noted that this provision establishes that the data subject has the right to obtain the data controller's confirmation as to whether personal data concerning them is being processed, and, if so, access to the personal data and information about, among other things, the purposes of the processing and the recipients or categories of recipients to whom the personal data has been or will be disclosed.

In this context, it should be emphasized that the concepts addressed in Article 15(1) of the General Data Protection Regulation are defined in Article 4 of this Regulation. Firstly, concerning Article 4(1) of the General Data Protection Regulation, this provision states that personal data means "any information relating to an identified or identifiable natural person," and it specifies that "an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person."

The use of the term "any information" in the definition of the concept of "personal data," as set out in this provision, reflects the EU legislator's intention to give the concept a broad meaning, so that it potentially encompasses any form of information, both objective and subjective in the form of opinions or assessments, provided that the information is "about" the data subject (judgment of 4.5.2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 23).

In this regard, it has been established that information relates to an identified or identifiable natural person if, due to its content, purpose, or effect, it is linked to an identifiable person (judgment of 4.5.2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 24).

As for the characterization of information about a person as "identifiable," it follows from Recital 26 of the General Data Protection Regulation that "all means [should] be considered that may reasonably be used by the data controller or another person to identify, directly or indirectly, the data subject."

It follows from this that the broad definition of the concept of "personal data" not only includes the information collected and stored by the data controller but also all information arising from the processing of personal data concerning an identified or identifiable person (see in this regard judgment of 4.5.2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 26).

Secondly, regarding the concept of "processing" as defined in Article 4(2) of the General Data Protection Regulation, it should be noted that the EU legislator, by using the term "any activity," intended to give this concept a wide scope, as expressed by the non-exhaustive nature of any activity or set of activities to which personal data or a set of personal data is subjected, such as collection, recording, storage, or retrieval (see in this regard judgment of 4.5.2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 27).

Thirdly, regarding Article 4(9) of the General Data Protection Regulation, it is specified therein that "recipient" means "a natural or legal person, a public authority, an agency, or another body to which personal data is disclosed, whether a third party or not."

In this regard, the Court has established that the data subject has the right to obtain information from the data controller about the specific recipients to whom the personal data concerning them has been or will be disclosed (judgment of 12.1.2023, Österreichische Post (Information on recipients of personal data), C-154/21, EU:C:2023:3, paragraph 46).

It therefore follows from an analysis of the wording of Article 15(1) of the General Data Protection Regulation and the concepts addressed in the provision that the right of access that the data subject has under this provision is characterized by the broad scope of the information that the data controller must provide to the data subject.

Next, regarding the context in which Article 15(1) of the General Data Protection Regulation is situated, it should first be noted that it follows from Recital 63 of this Regulation that the registered individual should have the right to know and be informed about, in particular, the purposes for which personal data is processed, the period during which personal data is processed, if possible, and the recipients of the personal data.

Secondly, it should be noted that it follows from Recital 60 of the Data Protection Regulation that the principles of fair and transparent processing require that the data subject is informed about the existence of processing activities and their purposes, emphasizing that the data controller should provide the data subject with any additional information necessary to ensure fair and transparent processing, taking into account the specific circumstances and context under which the personal data is processed. Furthermore, it follows from the principle of transparency, which the referring court has referred to, as stated in Recital 58 of the Data Protection Regulation, and which is explicitly established in Article 12(1) of this Regulation, that all information provided to the data subject must be concise, easily accessible, easy to understand, and written in clear and plain language.

In this regard, it is specified in Article 12(1) of the Data Protection Regulation that the information is provided in writing or by other means, including, where appropriate, electronically, and, when the data subject requests it, orally. This provision is an expression of the principle of transparency and aims to enable the data subject to achieve a full understanding of the information provided (judgment of 4 May 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 38 and the case law cited therein).

It follows from the above analysis of the context that Article 15(1) of the Data Protection Regulation constitutes one of the provisions aimed at ensuring transparency regarding the processing of personal data in relation to the data subject. Finally, this interpretation of the scope of the right of access established in Article 15(1) of the Data Protection Regulation is supported by the purposes pursued by this Regulation.

Firstly, as stated in Recitals 10 and 11 of this Regulation, it aims to ensure a consistent and high level of protection for natural persons within the EU and to strengthen and clarify the rights of the data subjects. Moreover, it follows from Recital 63 of the Data Protection Regulation that a person's right of access to personal data collected about them and to the information referred to in Article 15(1) of this Regulation primarily aims to enable that person to ascertain and verify the lawfulness of processing. It follows from this recital and from what is stated in paragraph 50 of this judgment that every data subject should have the right to know and be informed about, in particular, the purposes for which personal data is processed, the period during which personal data is processed, if possible, the recipients of the personal data, and the logic behind the processing of personal data.

In this regard, it should be noted secondly that the Court has already established that the right of access provided for in Article 15 of the Data Protection Regulation must enable the data subject to ensure that the personal data concerning them is accurate and is being processed lawfully (judgment of 4 May 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 34).

This right of access is particularly necessary for the data subject to exercise their right to rectification, the right to erasure ("right to be forgotten"), and the right to restriction of processing, which are granted to the data subject in Articles 16 and 18 of the Data Protection Regulation, respectively, and the right under Article 21 of the Data Protection Regulation to object to the processing of their personal data, as well as, according to Articles 79 and 82 of the Data Protection Regulation, access to seek remedies if they have suffered damage (judgment of 4 May 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 35 and the case law cited therein).

Article 15(1) of the Data Protection Regulation therefore constitutes one of the provisions aimed at ensuring the transparency of the procedure for processing personal data in relation to the data subject (judgment of 12 January 2023, Österreichische Post (Information on recipients of personal data), C-154/21, EU:C:2023:3, paragraph 42), without which the data subject would not be able to assess the lawfulness of the processing of their data and exercise the rights that are established, among others, in Articles 16-18, 21, 79, and 82 of this Regulation.

In the present case, it is evident from the order for reference that J.M. requested Pankki S to provide information about the searches that his personal data had been subject to between 1 November 2013 and 31 December 2013, as well as information about the dates of these searches, the purposes thereof, and the identities of the individuals who had conducted the searches. The referring court has stated that the transmission of the log files generated in connection with these searches made it possible to respond to J.M.'s request.

In this case, it is undisputed that the searches that the claimant's personal data has been subject to constitute a "processing" as referred to in Article 4(2) of the Data Protection Regulation, which implies that the claimant in the main proceedings, according to Article 15(1) of this Regulation, not only has the right of access to this personal data but also the right to obtain the information in... the latter provision concerned information about the relevant searches.

Regarding the information that J.M. has requested, the notification of the dates of the searches makes it possible, firstly, for the data subject to confirm that their personal data has indeed been subject to processing at a given time. Since the conditions for legality set out in Articles 5 and 6 of the General Data Protection Regulation (GDPR) must also be fulfilled at the time of the processing itself, the date of processing constitutes an element that allows for verification of its legality. It should also be noted that information about the purpose of the processing expressly falls under Article 15(1)(a) of the GDPR. Finally, Article 15(1)(c) of this Regulation stipulates that the data controller must inform the data subject about the recipients to whom the data subject's information has been disclosed.

Specifically concerning the communication of this information through the provision of logs related to the processing activities at issue, it should be noted that Article 15(3), first sentence, of the GDPR states that the data controller "shall provide a copy of the personal data undergoing processing."

In this regard, the Court has already established that the term "copy" as used here refers to an exact reproduction or transcript of an original, such that a merely general description of the data subject to processing or a reference to categories of personal data does not meet this definition. Furthermore, it follows from the wording of Article 15(3), first sentence, of this Regulation that the obligation to provide information pertains to the personal data that is subject to the processing in question (see, in this regard, judgment of 4 May 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 21).

The copy that the data controller must provide must include all personal data being processed, exhibit all characteristics that enable the data subject to effectively exercise their rights under this Regulation, and therefore must reproduce this information completely and accurately (see, in this regard, judgment of 4 May 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraphs 32 and 39).

In order to ensure that the information provided in this way is easy to understand, as required under Article 12(1) of the GDPR, in conjunction with Recital 58 thereof, it may indeed be necessary to reproduce extracts of documents as well as entire documents or extracts from databases that include, among other things, the personal data subject to processing, when contextualization of the processed data is necessary to ensure its comprehensibility. In particular, when personal data is generated based on other information, or when such data originates from free fields, i.e., the absence of a specification of information about the data subject, the context in which this data is processed is a necessary element to provide the data subject with transparent access to and an easily understandable presentation of this information (judgment of 4 May 2023, Österreichische Datenschutzbehörde and

CRIF, C-487/21, EU:C:2023:369, paragraphs 41 and 42).

As the Advocate General has indicated in paragraphs 90-88 of the draft opinion, the logs containing the information that J.M. has requested correspond to records of processing activities as referred to in Article 30 of the GDPR. They should be considered to fall under the measures mentioned in Recital 74 of this Regulation, which are implemented by the data controller to demonstrate that the processing activities are compliant with this Regulation. Article 30(4) of the same Regulation specifies, in particular, that these records must be made available to the supervisory authority upon request.

Insofar as these records of processing activities do not contain information about an identified or identifiable natural person as referred to in the case law mentioned in paragraphs 42 and 43 of this judgment, these records solely enable the data controller to fulfill its obligations towards the supervisory authority that requests them.

Specifically concerning the data controller's logs, it may be necessary to provide a copy of the information covered in these logs in order to fulfill the obligation to grant the data subject access to all the information referred to in Article 15(1) of the GDPR, and to ensure fair and transparent processing that allows the data subject to fully exercise their rights under the GDPR.

Firstly, such logs indeed show that the information has been processed, which constitutes information that the data subject must have access to under Article 15(1) of the GDPR. The logs also provide information on how often and to what extent searches have been conducted, allowing the data subject to ensure that the processing carried out is indeed justified by the purposes stated by the data controller.

Secondly, these logs contain information about the identity of the individuals who conducted the searches.

In the present case, it appears from the referral decision that the individuals who conducted the searches at issue are employees of Pankki S, who acted under the direction of Pankki S and according to instructions from the bank.

Although it is indeed evident from Article 15(1) of the GDPR, c) that the data subject has the right to obtain from the data controller information about the recipients or categories of recipients to whom the personal data have been or will be disclosed, the employees of the data controller cannot, as stated in the premises 47 and 48 of this judgment, be considered as "recipients" as referred to in Article 15(1)(c) of the General Data Protection Regulation when they process personal data under the management and instructions of the data controller, as the Advocate General has indicated in point 63 of the proposal for a decision.

It should be emphasized in this regard that, according to Article 29 of the General Data Protection Regulation, anyone who works for the data controller and has access to personal data processes only that data under the instructions of the data controller.

That said, the information contained in the log files regarding the individuals who have conducted searches in the personal data of the data subject may constitute information as referred to in Article 4(1) of the General Data Protection Regulation, and as referenced in premise 41 of this judgment, which enables the data subject to verify the lawfulness of the processing to which their personal data has been subjected, and in particular to ensure that the processing activities have indeed been carried out under the authority of the data controller and according to their instructions.

Nevertheless, it follows first from the referral decision that such information in log files as those at issue in the main proceedings allows for the identification of the employees who have carried out the processing activities and contains such personal data about those employees as referred to in Article 4(1) of the General Data Protection Regulation.

In this regard, it should be noted that with respect to the right of access under Article 15 of the General Data Protection Regulation, it is specified in recital 63 of this Regulation that "[t]his right [must not] ... infringe upon the rights or freedoms of others."

According to recital 4 of the General Data Protection Regulation, the right to the protection of personal data is not an absolute right but must be viewed in relation to its function in society and weighed against other fundamental rights (see, in this regard, judgment of 16.7.2020, Facebook Ireland and Schrems, C-311/18, EU:C:2020:559, premise 172).

Although the disclosure of information about the identity of the data controller's employees to the person subject to the processing may prove necessary for the latter to ensure that the processing of their personal data is lawful, this may, however, infringe upon the rights and freedoms of the employees.

In the event of a conflict between, on the one hand, the exercise of a right of access, which ensures the effective exercise of the rights conferred on the data subject by the General Data Protection Regulation, and, on the other hand, the rights or freedoms of others, it is necessary in such circumstances to carry out a balancing of the rights or freedoms in question.

If possible, procedures should be chosen that do not infringe upon the rights or freedoms of others, taking into account – as stated in recital 63 of the General Data Protection Regulation – that such assessments must not “result in a refusal to provide all information to the data subject” (see, in this regard, judgment of 4.5.2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, premise 44).

It should, however, be noted secondly that it follows from the referral decision that J.M. has not requested information about the identity of the employees of Pankki S who have searched his personal data on the grounds that they were not actually acting under the authority of the data controller and according to their instructions, but that J.M. appears to be in doubt about the accuracy of the information that Pankki S has provided regarding the purpose of the searches in question.

If the data subject were to believe under such circumstances that the information provided by the data controller is insufficient for the data subject to dispel the doubts they have regarding the lawfulness of the processing to which their personal data has been subjected, the data subject has the right under Article 77(1) of this Regulation to lodge a complaint with the supervisory authority, which under Article 58(1)(a) of the same Regulation has the authority to request the data controller to provide all information necessary for the supervisory authority to address the data subject's complaint.

It follows from the above considerations that Article 15(1) of the General Data Protection Regulation must be interpreted as meaning that information regarding searches in a person's personal data and regarding the dates and purposes of those searches constitutes information that the affected person has the right to obtain from the data controller under this provision. This provision does not, however, prescribe such a right with respect to information about the identity of the employees of the data controller who have conducted the searches under the data controller's authority and according to their instructions, unless such information is necessary for the data subject to effectively exercise their rights under this Regulation, and provided that the rights and freedoms of the employees are respected.

3.4. The Specific Case

A log is a file in which an IT system stores information about its operation and use. Depending on the nature of the log, it may contain personal data.

The complainant, in his inquiry, which was forwarded to the Ministry of the Interior and Health on November 20, 2013, for the ministry's consideration, requested insight into the companies and authorities that have historically subscribed to information about him in the CPR register. Thus, this is a specific request in the aforementioned context.

The Data Protection Agency, based on the information provided by the Ministry of the Interior and Health, establishes that the security log of the CPR contains information about (historical) subscriptions for a certain period after they have ceased to be active.

Article 15, paragraph 1, of the General Data Protection Regulation (GDPR) implies that the data subject has the right to obtain confirmation from the data controller as to whether personal data concerning him or her is being processed, and, if so, access to the personal data and the information

referred to in points a-h of that provision, including, according to point c, information about the recipients or categories of recipients to whom the personal data have been or will be disclosed. When it comes to access to log files, it follows from the Court of Justice of the European Union's ruling in case C-579/12 – specifically its paragraph 83 – that the right of access under Article 15, paragraph 1, of the GDPR entails that information regarding searches of a person's personal data and regarding the dates and purposes of these searches constitutes information that the affected person has the right to obtain from the data controller under this provision.

The Data Protection Agency finds, on this basis, that the right of access under Article 15, paragraph 1, of the GDPR, including its point c, entails that the complainant has the right to the information about which companies and authorities have (historically) subscribed to information about him in the CPR register, as indicated in the CPR's security log.

The Data Protection Agency notes in this context that the data subject's purpose in requesting access cannot be given significance in relation to whether personal data is covered by the right of access under Article 15 of the GDPR. Furthermore, even though the CPR's security log, as stated by the Ministry of the Interior and Health, may not be used in isolation to verify the legality of the processing, access to it could contribute to this. By gaining insight into the CPR's security log, the data subject could contact the relevant authority or company to inquire further about the background of a subscription.

As indicated in the Ministry of the Interior and Health's refusal to grant the complainant access, it is the ministry's view that – regardless of the general right to access the information – exceptions to the right of access can be made with reference to Section 22, paragraph 2, of the Data Protection Act.

The Data Protection Agency understands from the Ministry of the Interior and Health that the refusal is primarily justified by the resources that would be associated with processing and responding to a request for access to the CPR's security log, including because the log would need to be reviewed for any confidential queries.

In this context, the Data Protection Agency's view is that the provision in Section 22, paragraph 2, of the Data Protection Act aims to prevent information that is significant for the interests stated in the provision, and which therefore must be kept confidential, from being disclosed in connection with the response to a request for access. In contrast, considerations regarding the data controller's (economic) interest in not using significant resources to respond to a request for access cannot be regarded as covered by the provision.

Furthermore, a general reference to the fact that it would be (too) resource-intensive to respond to a request for access as a justification for refusing a request for access would contradict the requirement that the data controller must make a specific assessment of whether there are compelling considerations for each individual piece of information. This is because it is typically this specific assessment that is resource-intensive.

On this basis, the Data Protection Agency finds that the Ministry of the Interior and Health cannot refuse to provide the complainant with information about the companies and authorities that have historically subscribed to information about him in the CPR register, based on the justification provided with reference to Section 22, paragraph 2, of the Data Protection Act.

The Data Protection Agency notes in this context that it has not taken a position on whether there may be specific subscriptions, etc., that should be kept confidential. The Data Protection Agency finds, in light of the agency's long-standing practice that there was no right to access security logs, which has been changed by this decision, that there is no basis for expressing criticism.

If the Ministry of the Interior and Health receives a renewed request for access from the complainant, the Data Protection Agency assumes that the Ministry of the Interior and Health will process the request in accordance with the decision in this case.